

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement (this “Agreement”) is made effective as of February 3, 2026 (the “Effective Date”) by and between TechCorp Industries, Inc., a New York corporation (“TechCorp”), and the counterparty identified on the signature page below (“Counterparty”). The parties wish to discuss a potential business relationship and may exchange Confidential Information as defined below. Each party may act as either Disclosing Party or Receiving Party.

1. Definition of Confidential Information

“Confidential Information” means any and all information disclosed by either party to the other party, whether marked as confidential or not, in any form, by any means, whether oral, written, electronic, visual, tangible, or intangible, including without limitation business plans, strategies, financial information, product information, technical information, customer lists, supplier lists, employee information, and any and all other information of any nature whatsoever that is exchanged between the parties at any time before, during, or after the term of this Agreement, regardless of whether such information would ordinarily be considered confidential or proprietary in nature.

2. Exceptions

The obligations of the Receiving Party set forth in Section 3 shall not apply to information that the Receiving Party can demonstrate, by competent written evidence:

- (a) was lawfully in the Receiving Party’s possession prior to disclosure by the Disclosing Party, free of any obligation of confidentiality;
- (b) is or becomes publicly available through no fault, act, or omission of the Receiving Party;
- (c) is lawfully received by the Receiving Party from a third party who has the right to disclose it and who imposes no confidentiality obligation;
- (d) is independently developed by the Receiving Party without any use of or reference to the Disclosing Party’s Confidential Information; or
- (e) is required to be disclosed pursuant to applicable law, regulation, or valid court order, provided that the Receiving Party gives the Disclosing Party prompt written notice (where legally permitted) and reasonable cooperation in seeking a protective order.

3. Obligations of the Receiving Party

3.1 Use Restriction. The Receiving Party shall use the Confidential Information solely for the purpose of evaluating and pursuing the potential business relationship between the parties and for no other purpose.

3.2 Standard of Care. The Receiving Party shall protect the Confidential Information using the same degree of care it uses to protect its own confidential information of like importance, but in no event less than a reasonable degree of care.

3.3 Limited Disclosure. The Receiving Party shall limit access to the Confidential Information to its employees, contractors, advisors, and representatives who (a) have a bona fide need to know such information for the purpose set forth in Section 3.1, and (b) are bound by written or professional confidentiality obligations no less protective than those set forth in this Agreement.

4. No License; No Warranty

4.1 Nothing in this Agreement shall be construed as granting any license, expressly or by implication, under any patent, copyright, trademark, trade secret, or other intellectual property right of the Disclosing Party.

4.2 The Disclosing Party makes no representations or warranties, express or implied, regarding the accuracy or completeness of the Confidential Information.

5. Mutual Remedies

Each party acknowledges that any breach of this Agreement by the Receiving Party may cause the Disclosing Party irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive or other equitable relief, in addition to any other remedies available at law or in equity, without the necessity of posting a bond. The remedies available under this Section 5 are mutual and shall apply equally to either party in its capacity as Disclosing Party.

6. Return or Destruction

Upon the Disclosing Party's written request, or upon termination of the discussions between the parties, the Receiving Party shall promptly return or destroy all Confidential Information of the Disclosing Party in the Receiving Party's possession, custody, or control, and certify such return or destruction in writing. Notwithstanding the foregoing, the Receiving Party may retain Confidential Information to the extent required by applicable law or its bona fide internal records retention policies, provided that any such retained Confidential Information shall remain subject to the confidentiality obligations of this Agreement for so long as it is retained.

7. Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict-of-laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York County, New York for any dispute arising out of or relating to this Agreement.

8. Miscellaneous

8.1 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, proposals, or representations concerning such subject matter.

8.2 Amendment. No amendment to this Agreement shall be effective unless in writing and signed by both parties.

8.3 Severability. If any provision of this Agreement is held invalid or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

TECHCORP INDUSTRIES, INC.

By: _____

Name: Marcus Whitfield

Title: General Counsel

COUNTERPARTY

By: _____

Name: _____

Title: _____